

LEGAL

Terms of Service

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These Terms of Service (the “Terms”) are an agreement between you and **Skelli-Sites**, a business operated by Mike Haddon in Tyler, Texas (“Skelli-Sites,” “we,” “us” or “our”). They apply when you visit our website or demo stores, request a free online store check-up, or buy our store design, build, hosting and marketing services.

By using our website or signing a proposal or Statement of Work that refers to these Terms, you agree to them. If you are accepting on behalf of a business, you confirm you have authority to bind that business. If you do not agree, please do not use our website or services.

1. Definitions

- **“Client,” “you”**: the person or business that buys Services from us, or a visitor to our website.
- **“Services”**: our implementation packages (Launch, Brand, Signature), monthly plans (Care, Growth, Scale), add-on services and the free online store check-up.
- **“Statement of Work” or “SOW”**: the written proposal, order or agreement that lists the package, price, timeline and scope for your project.
- **“Platform”**: the eCommerce software we developed and own, including the storefront, checkout, customer accounts, admin panel, and underlying source code, designs, templates and documentation.
- **“Client Store”**: the online store we build and host for you on the Platform.
- **“Client Content”**: everything you give us or add to your store, such as your logo, text, photos, product information and prices.
- **“End Customers”**: the shoppers who visit or buy from your Client Store.

2. How these Terms work with your Statement of Work

2.1 Each project is described in an SOW. The SOW and these Terms together form our agreement with you.

2.2 If an SOW and these Terms conflict, the SOW controls for that project.

2.3 Prices, package contents and plan features are those shown in your SOW or, if not stated there, in our price sheet current on the date you sign.

3. Our Services

3.1 Implementation packages. We design your brand identity (as included in your package), configure a Client Store on the Platform, load your products, connect your payment accounts, and launch the store.

3.2 Monthly plans. After launch, a monthly plan covers hosting, security updates, backups and support. Growth and Scale plans add advertising and email marketing management as described in your SOW.

3.3 Add-ons. Extra work, such as product photography, copywriting, additional product uploads, migrations and custom features, is quoted separately or billed at our hourly rate.

3.4 Free online store check-up. The check-up is a complimentary, informal review of your online presence. It is provided for general information only, with no obligation to buy and no guarantee of results.

3.5 We may use qualified subcontractors (for example, designers, photographers or copywriters). We remain responsible for their work.

4. Your responsibilities

4.1 Content and approvals. You will provide Client Content, product details and feedback promptly, and you confirm you have the right to use everything you give us.

4.2 Merchant accounts. You will open and maintain your own payment processor accounts (such as Square and PayPal). Sales proceeds are paid by the processor directly to you. We never hold your sales funds.

4.3 You are the seller. You are the merchant of record for every sale in your Client Store. You are responsible for your products, pricing, product descriptions, inventory, order fulfillment, shipping, returns, refunds, warranties and customer service, including orders fulfilled by dropshipping or print-on-demand suppliers you choose.

4.4 Taxes. You are responsible for registering for, collecting, reporting and paying all sales, use and other taxes on your sales. The Platform includes a sales-tax calculation tool for your convenience. You are responsible for confirming that the rates and settings are correct for your business. We do not provide tax advice.

4.5 Legal compliance. You are responsible for making sure your store, products and marketing comply with the laws that apply to you, including consumer protection, advertising, shipping-time (such as the FTC Mail, Internet, or Telephone Order Merchandise Rule), email and text marketing, privacy and product safety laws. We may provide template store policies as a starting point. Templates are not legal advice, and you should have them reviewed for your business.

4.6 Account security. You will keep your admin login details confidential and tell us promptly if you suspect unauthorized access.

5. Fees and payment

5.1 Implementation fees. Unless your SOW says otherwise, 50% of the implementation fee is due before work begins and the remaining 50% is due at launch, before the store goes live.

5.2 Monthly plans. Monthly plan fees are billed in advance on the first day of each month to the payment method on file, starting the month your store launches. You authorize us to charge that payment method until the plan ends.

5.3 Minimum term. The Care plan is month-to-month. Growth and Scale plans have a minimum term of six (6) months, after which they continue month-to-month.

5.4 Advertising spend. You pay advertising platforms (such as Meta and Google) directly for your ad spend. If your monthly ad spend exceeds the limit in your plan, a management fee of 12% of the amount above the limit applies.

5.5 Additional work. Work outside your SOW is billed at \$85 per hour, or as quoted, after you approve it in writing.

5.6 Late payment. If a payment is more than 15 days overdue, we may pause work and suspend your Client Store until the account is brought current. We will give you notice by email before suspending a live store.

5.7 Refunds. Deposits pay for reserved time and work already started and are non-refundable once work has begun. If we cannot complete your project for reasons within our control, we will refund any fees paid for work not delivered. Monthly plan fees are non-refundable for the month already billed.

5.8 Price changes. We may change monthly plan prices with at least 30 days' written notice. Changes do not apply during a minimum term. Fees are stated exclusive of any taxes we are required to collect, which will be added to your invoice.

6. Revisions, changes and timelines

6.1 Each implementation package includes up to two (2) rounds of revisions on the staging version of your store. Further revisions are additional work under Section 5.5.

6.2 Requests that change the agreed scope require a written change order with any change in price and timeline.

6.3 Timelines in your SOW are good-faith estimates that depend on receiving your content and feedback on time. We are not responsible for delays caused by late content, late approvals or third parties.

6.4 If we do not hear from you for 30 days during a project, we may place the project on hold. Restarting may require a new timeline and, after 90 days, a reactivation fee as quoted.

7. Ownership and intellectual property

7.1 You own your brand and content. You keep all rights in your Client Content, your domain name, your customer and order data, and your merchant and advertising accounts.

7.2 Brand deliverables. Once you have paid for them in full, you own the final brand identity deliverables we create specifically for you, such as your logo, color palette and brand guide.

7.3 We own the Platform. The Platform, including its source code, design system, templates, tools and know-how, and any improvements to it, belongs to us. Nothing in these Terms transfers ownership of the Platform to you.

7.4 Your license. While your monthly plan is active and paid, we grant you a non-exclusive, non-transferable right to use the Platform to operate your Client Store. You may not copy, resell, reverse engineer or sublicense the Platform.

7.5 No lock-in on your data. On request, and for 30 days after your plan ends, we will provide an export of your product, customer and order data in a common format (such as CSV or JSON) and help transfer your domain to you.

7.6 Third-party materials. Stock images, fonts and software from third parties remain subject to their own licenses.

7.7 Portfolio. We may show your Client Store, name and logo in our portfolio and marketing. You may opt out at any time by emailing us. Founding-client discounts are given in exchange for a testimonial and case study, as stated in your SOW.

8. Hosting, availability and support

8.1 We host Client Stores with third-party cloud providers and aim for 99.9% availability, excluding scheduled maintenance and events outside our control. This is a target and not a guarantee.

8.2 We take regular backups of Client Store data. You should also keep your own copies of important content.

8.3 Support response times depend on your plan and are set out in your SOW. Support covers the Platform and your Client Store. It does not cover third-party services, your devices or your internet connection.

8.4 We may update the Platform at any time to improve it, fix problems or keep it secure.

9. Marketing services

9.1 Advertising and email accounts are opened in your name wherever possible, and you own them.

9.2 **No guaranteed results.** We will use reasonable skill and care, but we cannot promise any level of traffic, sales, revenue, search ranking or return on ad spend.

9.3 Advertising and email platforms set their own rules and may reject ads or suspend accounts. We are not responsible for their decisions.

9.4 You confirm that any contact lists you give us were collected lawfully and that recipients agreed to receive marketing where the law requires it.

10. Third-party services

Client Stores rely on services we do not control, including payment processors (such as Square and PayPal), cloud hosting, email delivery, location lookup services, shipping carriers, suppliers and advertising platforms. Your use of those services is governed by their own terms and privacy policies. We are not responsible for their fees, outages, errors, policy changes or decisions.

11. Acceptable use

You agree not to use our website, the Platform or a Client Store to:

- sell illegal, counterfeit, stolen, recalled or unsafe goods, or goods your payment processor prohibits;
- make false or misleading claims, post fake reviews, or infringe anyone's intellectual property or privacy;
- send spam or unlawful marketing messages;
- upload malware, probe or attack our systems, or try to access data that is not yours;
- store full payment card numbers or security codes outside the payment processor's secure fields.

We may refuse a project, remove content or suspend a Client Store that breaks this section. Where practical, we will tell you first and give you a chance to fix the problem.

12. Privacy and data protection

12.1 Our Privacy Policy explains how we handle personal information. It is part of these Terms.

12.2 You decide what personal information your Client Store collects from End Customers and why. We handle that information on your behalf and only to provide the Services, as described in the Privacy Policy.

12.3 You are responsible for publishing a privacy policy and terms on your Client Store and for responding to your End Customers' privacy requests. We will give you reasonable help.

12.4 We use reasonable technical and organizational safeguards. If we become aware of a security breach affecting your Client Store data, we will notify you without undue delay.

13. Confidentiality

Each of us will keep the other's non-public business information confidential, use it only to perform this agreement, and protect it with reasonable care. This does not apply to information that is public, already known, independently developed, or required to be disclosed by law.

14. Term, cancellation and termination

14.1 These Terms apply from the date you first use our website or sign an SOW and continue while you use the Services.

14.2 **Cancelling a monthly plan.** You may cancel with 30 days' written notice (email is fine). For Growth and Scale plans, cancellation takes effect at the end of the minimum term or 30 days after notice, whichever is later.

14.3 **Cancelling a project.** If you cancel a project before launch, you owe fees for work completed to that date, and the deposit is applied toward that amount.

14.4 **Termination for cause.** Either of us may end the agreement if the other materially breaches it and does not fix the breach within 15 days of written notice. We may end it immediately for serious violations of Section 11.

14.5 **What happens when service ends.** Your Client Store is taken offline, your license to use the Platform ends, and Section 7.5 (data export) applies. After the 30-day export period we may delete your Client Store data, except where the law requires us to keep it.

15. Warranties and disclaimers

15.1 We will perform the Services in a professional manner. For 30 days after launch, we will fix at no charge any defect where the Client Store does not work as described in your SOW.

15.2 EXCEPT AS STATED IN SECTION 15.1, OUR WEBSITE, THE PLATFORM AND THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE." TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE OR COMPLETELY SECURE.

15.3 Nothing we provide is legal, tax, accounting or financial advice.

16. Limitation of liability

16.1 TO THE FULLEST EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST SALES, LOST DATA OR BUSINESS INTERRUPTION, EVEN IF TOLD THEY WERE POSSIBLE.

16.2 OUR TOTAL LIABILITY FOR ALL CLAIMS RELATING TO THE SERVICES IS LIMITED TO THE FEES YOU PAID TO SKELLI-SITES IN THE TWELVE (12) MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM.

16.3 These limits do not apply to your obligation to pay fees, to either party's indemnity obligations, or to liability that cannot be limited by law.

17. Indemnification

17.1 By you. You will defend and indemnify us against third-party claims, losses and costs (including reasonable attorneys' fees) arising from your Client Content, your products and sales, your dealings with End Customers and suppliers, your taxes, or your violation of law or these Terms.

17.2 By us. We will defend and indemnify you against third-party claims that the Platform, as we provide it, infringes that party's copyright or trademark, except to the extent the claim arises from Client Content or changes you asked for.

17.3 The party seeking indemnity must give prompt notice, allow the other party to control the defense, and cooperate reasonably.

18. Using our website and demo stores

18.1 You may browse our website and demo stores for your own evaluation of our Services. You must be at least 18 years old to buy Services.

18.2 Demo stores are for demonstration only. Products shown in a demo are not for sale, and no real order will be fulfilled.

18.3 If you create an account, you are responsible for keeping your login details secure and for activity under your account.

18.4 Our website content is provided for general information and may change without notice.

19. Governing law and disputes

19.1 These Terms are governed by the laws of the State of Texas, without regard to its conflict-of-laws rules.

19.2 Before filing a claim, each party agrees to contact the other and try in good faith to resolve the dispute informally for at least 30 days.

19.3 Any lawsuit must be brought in the state or federal courts located in or serving Smith County, Texas, and each party consents to those courts.

20. General terms

20.1 Independent contractor. We are an independent contractor. Nothing here creates a partnership, employment or agency relationship.

20.2 Changes to these Terms. We may update these Terms. We will post the new version with a new effective date and, for material changes, notify active Clients by email at least 30 days in advance. Continued use of the Services after the effective date means you accept the changes.

20.3 Notices. We will send notices to the email address in your SOW. Send notices to us at the address in Section 21.

20.4 Events outside our control. Neither party is liable for delay or failure caused by events beyond its reasonable control, such as natural disasters, internet or power failures, or third-party service outages.

20.5 Assignment. You may not transfer this agreement without our written consent. We may transfer it as part of a reorganization, such as forming a limited liability company, or a sale of the business.

20.6 Entire agreement; severability. These Terms, the Privacy Policy and your SOW are the entire agreement between us. If any part is found unenforceable, the rest remains in effect. A failure to enforce a right is not a waiver.

21. Contact us

Questions about these Terms? Contact:

Skelli-Sites

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